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DECISION APPEAL

The Data Protection Authority decides on the data protection complaint of the minor Fabian A*** (complainant), represented by Mag. Ursula A***, dated July 22, 2021, against the head of the primary school N*** (respondent) due to alleged violations of the right to confidentiality as follows:

1. The complaint is partially upheld, and it is determined that the respondent violated the complainant's right to confidentiality by taking a photograph on May 20, 2021.
2. In all other respects, the complaint is dismissed as unfounded.

Legal bases: Art. 2, Art. 4, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 1 para. 1, 2, 13, 17 para. 1, 19 para. 1, para. 1a, para. 4 and para. 7, 47, 51 para. 1 and para. 3, 56 para. 1 to para. 4, 61 para. 1 and para. 2, and 62 para. 1 of the School Education Act (SchUG), Federal Law Gazette No. 472/1986 as amended; § 1 para. 2 no. 2 of the School Events Regulation 1995 (SchVV), Federal Law Gazette No. 498/1995 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In a submission dated July 22, 2021, the minor complainant, represented by his mother and legal representative, claimed a violation of the right to confidentiality and summarized as follows:
A teacher working at the primary school led by the respondent took a photo of the complainant during class using a mobile phone camera and subsequently sent it via "WhatsApp" to document his allegedly inappropriate behavior. This procedure was also reported by other parents. Furthermore, a "sociogram" of the entire class, including the complainant, was created. During a meeting at the relevant educational directorate with the affected teacher, the respondent, parent representatives, and staff of the educational directorate, it became clear that this was not conducted anonymously. The teacher presented excerpts of the results she interpreted, whereby the complainant was classified by other (named) students as "socially incompatible." A diary entry written by the complainant during class regarding an incident was read by the teacher. All these processing activities were not communicated to the complainant's guardians. In particular, no consent was given by the complainant or his legal representatives in this regard. Therefore, they are also unaware of whether the results of the processing were transmitted or disclosed to third parties or how long these were stored or archived by the class teacher on her mobile phone.
2. In a communication dated July 27, 2021, the Data Protection Authority requested the respondent to provide a statement.
3. In a submission dated August 26, 2021, the respondent stated as follows:
The aforementioned class teacher took a photo of the complainant on May 20, 2021, and sent it to the mother and representative in the present proceedings via "WhatsApp." The background was an incident the day before, in which the complainant's mother accused the teacher of not allowing the complainant to eat. The photo was taken as "evidence" to refute these allegations. The photo shows the complainant eating after the designated break. The original idea of using "WhatsApp" as a means of communication was implemented at the request of the parents during the time of the pandemic-related "lockdown" instead of the parent booklet. The respondent only became aware of this use on April 15, 2021, after which it was (repeatedly) expressly prohibited, and it was again pointed out that this violated an explicit instruction from spring 2020. Regarding the "sociogram," it is noted that this was created by the class teacher after the complainant's mother requested a different seating arrangement in the class. The teacher had the children answer anonymized questionnaires about the

"class climate." This allows for the (objectified) reading of friendship constellations. An evaluation (in this case: for the selection of a favorite seat neighbor) was only possible through assignment to an author. For this, the class teacher used a numerical code that could only be assigned by her to a child. The evaluation was manually represented in a pie chart (sociogram). However, the names on the copy of the original attached to the submission to the Data Protection Authority were redacted for data protection reasons. The diary entry of the complainant stands...

in the immediate temporal context of a traumatic incident within the class, which had to be processed with the children in collaboration with the responsible school psychologist, and therefore served as "processing assistance" through the documentation of incidents and emotions. Furthermore, no additional data concerning the complainant had been processed. At the beginning of primary school, the mother and representative of the complainant consented to the processing of photos and personal data of the complainant. This consent form was also attached to the complaint, along with a copy of the "sociogram."

4. By decision dated September 16, 2021, the Data Protection Authority requested the respondent to provide a supplementary statement.

5. In a submission dated September 18, 2021, the respondent confirmed that the class teacher involved had deleted all photos of the complainant. The respondent also stated that the photos of the complainant had been removed from the school's homepage. The "sociogram" had only been recorded in handwriting (not digitized) and was relevant and understandable only for the class teacher concerning the social class climate.

6. By decision dated October 6, 2021, the Data Protection Authority granted the complainant the right to be heard.

7. In a submission dated October 18, 2021, the minor complainant, represented by his mother and legal representative, stated that regarding the photos, the class teacher had documented misbehavior of children using images or videos on her phone, which were either transmitted via WhatsApp to the respective parent or played for them during conversations. In his case, this concerned the image transmission on May 20, 2021. The consent for memory photos and the transmission of information explicitly still existed, but not for the creation of defamatory photos. The "sociograms" had been presented to the complainant's parents during the meeting at the education directorate. Therefore, the alleged immediate destruction could not correspond to the facts. The complainant had written two sentences himself regarding the diary entry and, after a vehement request from the class teacher, had written additional sentences about the incident together with another teacher (not the class teacher).

8. By decision dated October 19, 2021, the Data Protection Authority again requested the respondent to provide a statement.

9. In a submission dated October 23, 2021, the respondent essentially referred to her previous statements, particularly that the class teacher had taken only one picture of the complainant on the mentioned day and had transmitted it solely as an explanation to the mother and representative in the present proceedings. She had waited in front of the school building because she had accompanied the class into the forest. However, since the complainant had started eating, the class teacher wanted to inform about the reason for the delay by taking and subsequently transmitting the picture. The complainant's diary entry had not been commissioned by the counseling teacher, and she had merely skimmed part of it. Subsequently, she had conducted discussions with the class to process "the incident."

10. By decision dated October 28, 2021, the Data Protection Authority again granted the complainant the right to be heard.

11. In a submission dated November 15, 2021, the complainant, represented by his mother and legal representative, stated that the consent form had in no way been given for the creation of image material for "evidence" or as a pedagogical measure. The complainant was the only child for whom image material had been created in such situations. The processing of personal data with such

far-reaching consequences (especially concerning the "sociogram"), which led to the isolation of the complainant, seemed peculiar. In particular, the representative had not received any information regarding, for example, the retention period.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality by having the complainant's class teacher create a photograph and a "sociogram."

C. Findings of Fact

1. At the relevant time (specifically: May 2021), the complainant was a minor child of primary school age. The representative in the present proceedings is his mother and legal guardian.
2. The respondent is the head of the primary school N***, B***–Gasse 1* in *031 D****, which was also the school attended by the complainant at the relevant time.
3. On May 20, 2021, a teacher working at the aforementioned school, who was the complainant's class teacher at that time, took a picture of the complainant during class time or as part of a school excursion using a mobile phone camera and subsequently transmitted it via "WhatsApp" to the complainant's mother. The photo was deleted by the teacher by the end of the present proceedings and Furthermore, it is not passed on to third parties. The complainant is clearly recognizable in the mentioned image and shows him during the meal at the time of the beginning of the school excursion. At this time, there was an (active) order from the respondent, which prohibited the staff from using the mentioned messaging service (WhatsApp), but not from taking photos of the children.
4. The background of the photograph (Point C.3.) was prior disagreements between the class teacher and the mother of the complainant regarding the timing of the complainant's meal or whether the class teacher completely forbade him from eating.
5. On September 13, 2018, the mother and legal guardian of the complainant signed the following document with the respondent:

I agree that photos from school life, in which my child may also be seen, may be published on our school homepage on the internet or in newspapers.

The photos show children playing, working, in their free time, at parties, etc.

No images with the full names of the children will be published on the homepage!

Last name of the child:

A*** 1A

First name of the child:

Fabian

Date:

September 13, 2018

Signature: Ursula A***

I, Ursula A***, expressly agree that my personal and my child's personal data

Fabian A*** may be processed and managed by the primary school N***, B***–Gasse 1* in *031 D****.

The consent declaration can be revoked at any time in writing by sending a letter to the school management of the primary school N***.

The revocation does not affect the legality of the processing that has taken place up to that point.

N***, September 13, 2018 Ursula A***

Assessment of evidence: The findings regarding points C.1. – C.5. are based on the consistent and thus undisputed submissions of the parties as well as on the documents submitted by them.

6. The class teacher of the complainant made a handwritten note or drawing that served to graphically represent the relationships within the complainant's class and subsequently the seating arrangement. The complainant was named in this context, and his relationship was represented by colored connecting lines (depending on the number of mentions by the other children) (hereinafter referred to as: "sociogram").

7. The mother or the guardians of the complainant became aware of the mentioned sociogram through a conversation at the competent educational directorate.

Assessment of evidence: The finding regarding point C.6. is based on the credible submissions of the respondent (or the statement of the class teacher) as well as on the submitted documents, the authenticity of which has not been disputed by the complainant. The finding under point C.7. is based on the credible submissions of the complainant (or his legal representative).

D. From a legal perspective, this results in:

D.1. General

D.1.1. Regarding the minor complainant

It should be noted at the outset that individuals who are not legally capable participate in the administrative procedure through their legal representative. Who is the legal representative is primarily determined according to § 9 AVG by the administrative regulations and subsidiarily according to the provisions of civil law. Minors are therefore generally represented by their parents or guardians (cf. VwGH of February 25, 2016, Ra 2016/19/0007).

It should be noted in advance that the asserted right to confidentiality according to § 1 para. 1 DSG is a highly personal right (cf. generally the right to protection of personal data and of private and family life § 1 DSG, GDPR in conjunction with Art. 8 EU-CFR or Art. 8 ECHR as well as OGH of October 11, 2010, 6 Ob 112/10d regarding § 26 DSG 2000).

In light of the special protection claim of children – derivable by analogy from Art. 8 or Recital 38 of the GDPR, from Art. 24 EU-CFR as well as the BVG Children's Rights –

The Data Protection Authority maintains in its consistent case law that the possibility of representation in data protection matters requires actions by the legal representative that are oriented towards the welfare of minors. In the present case, there are no indications that the intervention of the mother as the legal representative contradicts the interests or even the will of the complainant (cf. § 138 Z 6 ABGB); rather, the legal representative pursues the safeguarding of the (data protection-relevant) rights of her child (Z 11 leg. cit.), particularly concerning the taking of photographs.

As an interim conclusion, it can therefore be stated that the mother's authority to represent is considered to be given in the present proceedings.

D.1.2. Regarding the Responsibility of the Respondent

Even though a violation of § 1 DSG (and thus of the Data Protection Act) has been asserted in the proceedings, reference can be made to the provisions of the GDPR, particularly Art. 4 Z 7, which defines the "controller" as the natural or legal person, authority, institution, or other body that alone or jointly with others determines the purposes and means of processing personal data.

As can be inferred from the findings, the specific processing activities in question (taking photographs, creating the sociogram) were indeed carried out by the class teacher as a natural person. According to prevailing literature (cf. Kühling/Buchner in Datenschutz-Grundverordnung (2017), Art. 4 Rz. 9-10) and case law (cf. the ruling of the BVwG of April 27, 2022, GZ: W214 2237072-1), actions of an individual natural person—if they act for an organization or other body—are generally attributed to that organization as the responsible entity (from a data protection perspective).

Both the taking of the complainant's photograph in connection with a school excursion (cf. § 51 Abs. 3 SchUG) and the creation of the sociogram as part of lesson planning (cf. § 51 Abs. 1 SchUG) qualify as the fulfillment of official (teacher) duties and are to be attributed accordingly to the following statements.

According to the case law of the Data Protection Commission, it was to be assumed that in the area of schools, which are themselves only "dependent institutions," the school principal (under the old legal situation "client") is the data protection responsible party (decision of the DSK of June 20, 2008, GZ K600.055-001/0002-DVR/2008, retrievable in the RIS).

This legal view has not changed in that § 56 SchUG continues to name the principal as the decision-making authority at the level of the individual school. The Federal Administrative Court also stated regarding responsibility in the school sector (specifically: performance assessment) that the

teaching and educational work (§ 17 Abs. 1 SchUG) must be carried out by an individual teacher—regardless of a certain functional independence, such as through their own records—always within the organizational framework of the school and under the service and specialist supervision of the principal (§ 56 SchUG). Given the typically large teaching staff, the assumption of independent data protection responsibility by an individual teacher would be misguided for purposes of practicality, and the (decisive) design of the data protection framework (e.g., through school instructions) and thus ultimately the responsibility under Art. 4 Z 7 GDPR lies with the head of the respective school (cf. the ruling of the BVwG of September 30, 2020, GZ: W274 2225135-1).

Even though the elementary school itself and not the respondent (as its head) was fundamentally designated in the initiating submission of the proceedings, in light of this context and the fact that the subsequent statements were always made by the respondent herself as the head of the elementary school, she is to be qualified as the responsible party (and respondent in the present proceedings) (cf. also the ruling of the Federal Administrative Court of March 30, 2020, GZ W274 2220424-1/3, which states that depending on the outcome of the investigation, an official correction of the party designation must take place if the designation chosen by the complainant is found to be incorrect).

D.2. On the Merits

According to § 1 Abs. 1 DSG, everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, provided that there is a legitimate interest in doing so.

As long as the use of personal data does not occur in the vital interest of the data subject or with their consent, restrictions on the right to confidentiality are only permissible to safeguard overriding legitimate interests of another party.

Interventions by a state authority are only permissible based on laws (§ 1 Abs. 2 DSG).

D.2.1. Regarding the Taken Photograph (Decision Point 1)

As can be inferred from the findings, the photograph in question was taken during a school excursion and thus during ongoing school instruction. It should be noted at the outset that the present complaint explicitly referred to the taking of the photograph, not to its transmission via WhatsApp, which means that the "order" cited by the respondent (see point C.3.) did not need to be further addressed (see regarding the limitation of the subject of the complaint the ruling of the BVwG of October 15, 2021, GZ: W211 2233114-1/9E).

A school excursion is a school event within the meaning of § 13 SchUG in conjunction with § 1 para. 2 no. 2 SchVV, which serves to supplement the curriculum and is thus encompassed by the supervisory duties of the respective teacher (§ 51 para. 3 SchUG) or, in a broader sense, of the headmaster or headmistress (see § 56 para. 4 SchUG). The Data Protection Commission has stated in connection with video surveillance at a school that this—if it serves the supervision of students—is part of the mandatory educational work, which requires an explicit, sufficiently determined legal authorization for it to be considered "sovereign" data processing (Decision of the DSK of June 20, 2008, K600.054-001/0002-DVR/2008, retrievable in the RIS). This case law can be analogously applied to the present, similarly situated case.

In this regard, it was also unnecessary to address the assertion that the legal representative of the complainant had provided a "consent declaration" (apparently meant: declaration of consent within the meaning of § 1 para. 2 DSG) (see point C.5.), due to the necessity of a legal basis and the related inadequacy of this permission condition. As already noted, the affected class teacher neither disclosed to third parties—except for the complainant's mother—nor permanently stored the photograph (see point C.3., according to which the photograph was deleted before the conclusion of the proceedings), which may suggest a lesser, but not entirely absent, protectable interest in the complainant's data.

Regarding the legal permission condition, the provisions of the SchUG are particularly relevant, which provide various obligations for teaching staff on the one hand and information rights for guardians on the other. According to § 51 para. 1 and para. 3 of the cited law, the main task of the teacher is

educational and instructional work. They must supervise students at all school events and school-related activities both inside and outside the school building (§ 51 para. 1 and para. 3 SchUG).

In the context of the school's involvement in the education of students, the teacher must apply the personality- and community-building educational means appropriate to the educational situation, which can include recognition, encouragement, or reprimand (§ 47 para. 1 of the cited law). If the educational situation of a student requires it, the class teacher or the school principal must maintain agreement with the guardians (§ 48 of the cited law). Furthermore, § 62 para. 1 of the cited law stipulates that teachers and guardians must maintain as close cooperation as possible in all matters of the education and instruction of students, and for this purpose, individual discussions and joint consultations between them must be held.

According to § 19 para. 1 of the cited law, guardians must be informed of the assessment of the performance of the student through school reports. In addition, guardians must be given the opportunity for individual discussions. According to para. 1a of the cited law, regular discussions between the teacher, guardians, and the student must also be provided for in primary schools. The communications according to these provisions are exclusively informational in nature.

Laws that declare the processing of personal data by a public authority to be permissible must sufficiently precisely describe the purpose of the intervention and precisely regulate under what conditions personal data may be processed to fulfill specific administrative tasks (Grabenwarter/Frank, B-VG § 1 DSG Rz. 5 referring to VfSlg. 18.146/2007).

In light of this literature and case law, it can be stated for the present case that the mere (regular) obligation to inform guardians about certain facts and behaviors of their children undoubtedly does not derive a processing authorization for the respondent (or the teaching staff under their supervision). The mentioned provisions provide for regular discussions or consultations, but do not foresee any—explicit or implicit—processing of data (especially not in the form of photographs).

Furthermore, it should be noted that the respondent at no time claimed or provided any indications that the photograph taken would serve or served the (formal) refutation of any allegations in connection with school or service or supervisory authority by the competent authority (Education Directorate). Due to the lack of a sufficiently legally determined basis in the sense of § 1 para. 2 DSG, the complaint was to be upheld in this regard. However, since the photograph in question had already been deleted—as established—there was no need for a corresponding performance order under Art. 58 para. 2 GDPR.

D.2.2. Regarding the prepared sociogram (point 2)

It should be noted at the outset that the present sociogram, due to the naming of the complainant—thus due to their identifiability—constitutes personal data; however, the GDPR does not apply due to the lack of (partial) automated processing (Art. 2 para. 1 leg. cit.). In contrast, with regard to a violation of the right to confidentiality (or other rights and obligations under the DSG), it does not matter how data is processed; consequently, both handwritten and oral communication can lead to a violation of this provision (see the ruling of the Administrative Court of Appeal dated February 28, 2018, Ra 2015/04/0087, as well as the decision of the DSB dated September 10, 2018, GZ: DSB-D123.098/0003-DSB/2018).

As can be inferred from the findings or the parties' submissions, the preparation of the sociogram served to arrange the seating within the complainant's class and is therefore undoubtedly a central, integral part of the teaching and educational work carried out by the responsible class teacher in accordance with §§ 17 para. 1 and 51 para. 1 SchUG.

The complainant did not present any evidence of excessive or disproportionate processing, nor were there any indications in this regard.

Consequently, the processing in question was covered by a sufficiently legally determined legal basis in accordance with § 1 para. 2 DSG, and the complaint on this point was to be dismissed in accordance with § 24 para. 5 DSG.

It was therefore to be decided accordingly.